COMMERCIAL AGREEMENT - RECORD 009

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-009

1. Recitals and defined terms

This Contract Manufacturing Agreement is made between Helioscope Robotics, Inc. as Provider and Ironvale Contract Manufacturing Inc. as Manufacturer, a contract manufacturing business organised in Michigan, contracting through Ironvale Contract Manufacturing Inc.. Ironvale and the Provider have agreed that terms defined in the recitals and in Exhibit D carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Except as Article 14 (Indemnities) permits, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In terms of consequence, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 2 sites in Michigan means Ironvale applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. Nothing in the Ironvale negotiation history qualifies Article 12 (Intellectual Property), and a reviewer should not read the pre-signature drafts as doing so.

The parties have recorded in Exhibit A that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As to enforcement, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Michigan is where Ironvale runs contract manufacturing operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. Because Ironvale operates in contract manufacturing, the practical burden of this clause falls on its Michigan operation, and Article 2 (Definitions) governs how it is measured.

Ironvale bears the risk that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. By way of qualification, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. Where Ironvale has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

Ironvale acknowledges that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As it bites, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Operating 2 sites, Ironvale applies the Contract Manufacturing Agreement at the point of delivery, as contract manufacturing practice requires. Notices under Article 17 (Transition Assistance) go to the contracting entity named in the recital and not to any Ironvale affiliate that may operate a site.

Ironvale manufacturing agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Ironvale milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
IRO-M001	pilot acceptance	2025-07	28	seasonal freeze	$79,289	no payment attached
IRO-M002	full acceptance	2025-08	28	labour agreement	$105,363	invoiceable on acceptance
IRO-M003	full acceptance	2025-12	25	labour agreement	$236,068	no payment attached
IRO-M004	warranty commencement	2024-11	10	seasonal freeze	$190,863	invoiceable on acceptance
IRO-M005	integration test passed	2024-07	26	no delay	$138,209	invoiceable on certification
IRO-M006	pilot acceptance	2025-09	22	facility readiness	$156,193	no payment attached
IRO-M007	full acceptance	2025-03	29	facility readiness	$211,341	invoiceable on certification
IRO-M008	units delivered	2025-11	18	no delay	$44,627	no payment attached
IRO-M009	warranty	2025-11	15	seasonal freeze	$121,896	invoiceable on

Ironvale milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement					acceptance
IRO-M010	site survey complete	2025-02	5	facility readiness	$269,440	invoiceable on acceptance
IRO-M011	integration test passed	2025-05	19	labour agreement	$223,801	no payment attached
IRO-M012	steady-state handover	2025-07	6	no delay	$16,097	invoiceable on acceptance
IRO-M013	warranty commencement	2025-10	20	facility readiness	$35,088	invoiceable on certification
IRO-M014	units delivered	2024-09	9	labour agreement	$30,434	invoiceable on certification
IRO-M015	full acceptance	2026-10	1	seasonal freeze	$90,494	no payment attached
IRO-M016	site survey complete	2025-01	9	seasonal freeze	$74,828	no payment attached
IRO-M017	network readiness certified	2026-02	28	seasonal freeze	$18,610	invoiceable on acceptance
IRO-M018	units delivered	2025-03	31	Customer IT dependency	$111,599	no payment attached
IRO-M019	network readiness certified	2025-08	23	Customer IT dependency	$263,079	invoiceable on certification
IRO-M020	network readiness certified	2025-12	24	Customer IT dependency	$117,954	invoiceable on certification
IRO-M021	pilot acceptance	2026-08	31	seasonal freeze	$105,519	no payment attached
IRO-M022	warranty commencement	2026-03	25	network provisioning	$117,651	invoiceable on certification
IRO-M023	site survey complete	2025-04	on plan	network provisioning	$35,170	invoiceable on acceptance
IRO-M024	network readiness certified	2026-08	3	Customer IT dependency	$17,081	invoiceable on acceptance
IRO-M025	units delivered	2025-10	24	network provisioning	$200,349	invoiceable on certification
IRO-M026	full acceptance	2026-12	14	no delay	$20,572	no payment attached
IRO-M027	warranty commencement	2026-01	25	no delay	$57,038	invoiceable on acceptance
IRO-M028	warranty commencement	2025-07	27	network provisioning	$158,152	invoiceable on acceptance
IRO-M029	warranty commencement	2025-05	12	no delay	$41,726	invoiceable on certification
IRO-M030	network readiness certified	2025-08	21	seasonal freeze	$205,557	no payment attached
IRO-M031	warranty commencement	2024-10	24	seasonal freeze	$81,696	invoiceable on acceptance
IRO-M032	warranty commencement	2025-06	33	labour agreement	$127,115	invoiceable on certification
IRO-M033	steady-state handover	2024-11	9	seasonal freeze	$67,376	no payment attached
IRO-M034	pilot acceptance	2024-05	6	network provisioning	$118,097	invoiceable on certification
IRO-M035	integration test passed	2024-06	28	Customer IT dependency	$259,959	invoiceable on certification
IRO-M036	site survey complete	2026-08	13	labour agreement	$41,043	no payment attached
IRO-M037	integration test passed	2024-10	24	network provisioning	$222,024	no payment attached
IRO-M038	pilot acceptance	2026-12	5	facility readiness	$79,542	no payment attached
IRO-M039	pilot acceptance	2024-11	21	network provisioning	$88,582	invoiceable on acceptance
IRO-M040	integration test passed	2025-05	26	Customer IT dependency	$228,206	invoiceable on certification
IRO-M041	warranty commencement	2025-07	30	facility readiness	$189,627	invoiceable on acceptance
IRO-M042	units delivered	2024-01	on plan	facility readiness	$98,023	invoiceable on acceptance
IRO-M043	warranty	2025-02	24	facility readiness	$254,155	invoiceable on

Ironvale milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement					certification
IRO-M044	full acceptance	2026-11	21	Customer IT dependency	$40,834	invoiceable on certification
IRO-M045	integration test passed	2024-09	2	Customer IT dependency	$159,441	no payment attached
IRO-M046	pilot acceptance	2026-11	4	Customer IT dependency	$215,438	no payment attached
IRO-M047	units delivered	2025-03	21	network provisioning	$224,231	invoiceable on acceptance
IRO-M048	full acceptance	2024-11	17	no delay	$119,587	invoiceable on certification
IRO-M049	network readiness certified	2026-07	on plan	network provisioning	$55,889	invoiceable on acceptance
IRO-M050	units delivered	2025-06	17	network provisioning	$137,503	invoiceable on acceptance
IRO-M051	pilot acceptance	2025-07	33	facility readiness	$56,772	no payment attached
IRO-M052	integration test passed	2026-03	5	network provisioning	$33,479	no payment attached
IRO-M053	integration test passed	2026-08	16	seasonal freeze	$209,981	invoiceable on acceptance
IRO-M054	integration test passed	2024-07	5	no delay	$257,322	invoiceable on certification
IRO-M055	warranty commencement	2025-11	19	seasonal freeze	$33,071	invoiceable on acceptance
IRO-M056	site survey complete	2026-01	18	labour agreement	$143,857	invoiceable on certification
IRO-M057	network readiness certified	2024-08	20	no delay	$173,103	invoiceable on acceptance
IRO-M058	steady-state handover	2024-12	19	Customer IT dependency	$151,551	invoiceable on acceptance
IRO-M059	warranty commencement	2026-02	1	no delay	$129,225	invoiceable on certification
IRO-M060	full acceptance	2026-04	30	network provisioning	$34,856	invoiceable on certification
IRO-M061	warranty commencement	2026-01	12	labour agreement	$216,930	invoiceable on certification
IRO-M062	full acceptance	2026-08	12	Customer IT dependency	$120,917	invoiceable on acceptance
IRO-M063	units delivered	2025-05	6	labour agreement	$146,400	invoiceable on acceptance
IRO-M064	network readiness certified	2025-08	33	no delay	$181,785	invoiceable on acceptance
IRO-M065	pilot acceptance	2025-03	13	seasonal freeze	$89,777	invoiceable on certification
IRO-M066	warranty commencement	2026-06	23	no delay	$113,296	invoiceable on acceptance
IRO-M067	pilot acceptance	2026-06	26	seasonal freeze	$121,563	no payment attached
IRO-M068	pilot acceptance	2025-06	18	Customer IT dependency	$205,890	invoiceable on acceptance
IRO-M069	integration test passed	2024-10	23	facility readiness	$215,206	invoiceable on acceptance
IRO-M070	integration test passed	2024-06	33	labour agreement	$12,819	no payment attached
IRO-M071	network readiness certified	2025-11	18	labour agreement	$184,201	invoiceable on certification
IRO-M072	pilot acceptance	2025-11	26	Customer IT dependency	$108,955	invoiceable on certification
IRO-M073	integration test passed	2024-01	22	facility readiness	$73,333	no payment attached
IRO-M074	site survey complete	2024-02	14	seasonal freeze	$238,853	no payment attached
IRO-M075	site survey complete	2025-10	24	network provisioning	$205,986	invoiceable on acceptance
IRO-M076	integration test passed	2026-05	29	Customer IT dependency	$59,425	no payment attached
IRO-M077	warranty	2025-05	31	network	$48,488	no payment

Ironvale milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement			provisioning		attached
IRO-M078	full acceptance	2024-04	15	seasonal freeze	$199,485	invoiceable on certification
IRO-M079	integration test passed	2025-12	32	Customer IT dependency	$105,033	invoiceable on acceptance
IRO-M080	integration test passed	2026-09	24	network provisioning	$85,328	no payment attached
IRO-M081	full acceptance	2025-07	26	labour agreement	$215,482	invoiceable on certification
IRO-M082	pilot acceptance	2026-02	19	facility readiness	$40,370	invoiceable on acceptance
IRO-M083	network readiness certified	2026-01	24	network provisioning	$214,071	invoiceable on acceptance
IRO-M084	full acceptance	2025-11	6	labour agreement	$17,134	invoiceable on certification
IRO-M085	units delivered	2025-05	19	labour agreement	$189,681	no payment attached
IRO-M086	full acceptance	2024-12	28	seasonal freeze	$232,418	no payment attached

2. Scope of supply and orders

Ironvale has agreed, and the Provider has accepted, that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Intended effect: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. The Ironvale file records the position as at the last amendment, and Article 11 (Data and Telemetry) is the reference a reviewer should cite when raising it.

Except as Article 11 (Data and Telemetry) permits, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Strictly, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Because Ironvale is a Michigan contract manufacturing business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. Ironvale has taken the point up once since signature; the correspondence is filed against Article 16 (Term and Termination) and did not result in an amendment.

Ironvale Contract Manufacturing Inc. is entitled to require that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Per the amendment history, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. Nothing in the Ironvale negotiation history qualifies Article 19 (Confidentiality), and a reviewer should not read the pre-signature drafts as doing so.

Read with Exhibit A, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Intended effect: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Ironvale's 2 sites, since a contract manufacturing operator administers the Contract Manufacturing Agreement where the units work. The Ironvale relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

3. Delivery, title and risk

Under Article 15 (Limitation of Liability) of the Contract Manufacturing Agreement, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In point of remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately,

which is how a contract manufacturing operator in Michigan administers it. The Ironvale file records the position as at the last amendment, and Article 16 (Term and Termination) is the reference a reviewer should cite when raising it.

Neither Ironvale nor the Provider may treat Article 2 (Definitions) as permitting the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As drafted, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In contract manufacturing the burden of this sits with operations, and Ironvale discharges it across 2 sites under the Contract Manufacturing Agreement. The Ironvale file records the position as at the last amendment, and Article 6 (Fees and Payment) is the reference a reviewer should cite when raising it.

Ironvale may require that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the mechanics, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 2 sites in contract manufacturing, Ironvale takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. Where Ironvale has raised a query the Provider has answered by reference to Article 16 (Term and Termination), and the exchange is on the contract file.

Nothing in Exhibit B entitles Ironvale to assume that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On the wording, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. Because Ironvale operates in contract manufacturing, the practical burden of this clause falls on its Michigan operation, and Article 19 (Confidentiality) governs how it is measured.

Ironvale manufacturing agreement - Exhibit C - Service Levels and Credit Ladder

Ironvale service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
IRO-L001	response time	92.8%	5% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
IRO-L002	resolution time	96.9%	12% of monthly fee	23% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L003	availability	94.5%	1% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
IRO-L004	throughput	97.8%	7% of monthly fee	29% of monthly fee	excluding force majeure	credit then termination right
IRO-L005	availability	92.4%	6% of monthly fee	25% of monthly fee	no exclusion	credit then termination right
IRO-L006	throughput	92.9%	5% of monthly fee	10% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L007	throughput	90.2%	10% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
IRO-L008	availability	96.0%	11% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L009	availability	92.5%	9% of monthly fee	12% of monthly fee	excluding force majeure	credit only
IRO-L010	throughput	93.6%	1% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit only
IRO-L011	response time	94.7%	2% of monthly fee	18% of monthly fee	no exclusion	credit then termination right
IRO-L012	resolution time	97.8%	5% of monthly fee	19% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L013	availability	95.0%	7% of monthly fee	11% of monthly fee	no exclusion	credit only
IRO-L014	resolution time	95.0%	3% of monthly fee	11% of monthly fee	excluding Customer-caused	credit then termination right

Ironvale service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
IRO-L015	resolution time	92.3%	6% of monthly fee	24% of monthly fee	excluding force majeure	credit only
IRO-L016	throughput	98.3%	2% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit only
IRO-L017	availability	91.2%	4% of monthly fee	8% of monthly fee	no exclusion	credit only
IRO-L018	response time	98.9%	5% of monthly fee	24% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L019	response time	92.2%	3% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
IRO-L020	throughput	94.4%	2% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
IRO-L021	response time	92.6%	2% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
IRO-L022	response time	95.5%	9% of monthly fee	23% of monthly fee	excluding force majeure	credit then termination right
IRO-L023	throughput	95.1%	3% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
IRO-L024	response time	90.3%	11% of monthly fee	9% of monthly fee	excluding force majeure	credit then termination right
IRO-L025	response time	96.3%	9% of monthly fee	23% of monthly fee	excluding force majeure	credit only
IRO-L026	resolution time	93.3%	6% of monthly fee	19% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L027	response time	91.1%	8% of monthly fee	6% of monthly fee	no exclusion	credit only
IRO-L028	availability	95.3%	5% of monthly fee	12% of monthly fee	no exclusion	credit only
IRO-L029	response time	90.8%	8% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit only
IRO-L030	availability	91.4%	7% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
IRO-L031	resolution time	92.8%	2% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
IRO-L032	response time	92.8%	4% of monthly fee	22% of monthly fee	no exclusion	credit then termination right
IRO-L033	resolution time	93.2%	4% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L034	response time	92.7%	10% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit only
IRO-L035	throughput	97.3%	11% of monthly fee	26% of monthly fee	no exclusion	credit only
IRO-L036	resolution time	93.8%	9% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L037	throughput	91.9%	2% of monthly fee	22% of monthly fee	no exclusion	credit only
IRO-L038	throughput	90.0%	2% of monthly fee	16% of monthly fee	no exclusion	credit then termination right
IRO-L039	availability	96.3%	12% of monthly fee	18% of monthly fee	no exclusion	credit only
IRO-L040	resolution time	98.4%	10% of monthly fee	20% of monthly fee	no exclusion	credit only
IRO-L041	throughput	97.6%	11% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
IRO-L042	response time	96.4%	12% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L043	throughput	91.8%	10% of monthly	9% of monthly	excluding	credit then

Ironvale service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	termination right
IRO-L044	throughput	92.7%	11% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
IRO-L045	resolution time	95.6%	6% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L046	throughput	93.6%	12% of monthly fee	7% of monthly fee	excluding force majeure	credit only
IRO-L047	resolution time	98.7%	7% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
IRO-L048	resolution time	92.2%	6% of monthly fee	9% of monthly fee	no exclusion	credit only
IRO-L049	availability	96.0%	12% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit only
IRO-L050	throughput	91.6%	2% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L051	response time	98.9%	4% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
IRO-L052	throughput	93.4%	2% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L053	availability	93.4%	10% of monthly fee	25% of monthly fee	no exclusion	credit then termination right
IRO-L054	availability	92.1%	1% of monthly fee	14% of monthly fee	excluding force majeure	credit only
IRO-L055	availability	93.3%	11% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L056	availability	94.5%	3% of monthly fee	5% of monthly fee	no exclusion	credit only
IRO-L057	throughput	90.9%	6% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L058	availability	91.3%	6% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L059	throughput	94.6%	6% of monthly fee	22% of monthly fee	excluding force majeure	credit only
IRO-L060	resolution time	94.1%	9% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L061	throughput	96.5%	4% of monthly fee	29% of monthly fee	excluding force majeure	credit only
IRO-L062	throughput	93.5%	10% of monthly fee	25% of monthly fee	excluding force majeure	credit only
IRO-L063	resolution time	94.7%	9% of monthly fee	6% of monthly fee	excluding force majeure	credit only
IRO-L064	availability	96.3%	12% of monthly fee	29% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L065	response time	96.8%	7% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit only
IRO-L066	resolution time	91.3%	2% of monthly fee	22% of monthly fee	excluding force majeure	credit only
IRO-L067	availability	92.3%	4% of monthly fee	25% of monthly fee	excluding Customer-caused outage	credit then termination right
IRO-L068	resolution time	93.3%	2% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L069	availability	93.0%	9% of monthly fee	11% of monthly fee	no exclusion	credit only
IRO-L070	throughput	95.7%	11% of monthly fee	7% of monthly fee	excluding Customer-caused	credit only

Ironvale service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					outage	
IRO-L071	resolution time	98.0%	4% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit only
IRO-L072	resolution time	91.6%	11% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit then termination right
IRO-L073	response time	96.8%	4% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
IRO-L074	resolution time	94.4%	3% of monthly fee	5% of monthly fee	excluding force majeure	credit then termination right
IRO-L075	availability	93.7%	8% of monthly fee	6% of monthly fee	excluding force majeure	credit then termination right
IRO-L076	response time	96.8%	1% of monthly fee	30% of monthly fee	excluding force majeure	credit only
IRO-L077	throughput	91.7%	1% of monthly fee	21% of monthly fee	excluding force majeure	credit only
IRO-L078	availability	98.8%	10% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit only
IRO-L079	resolution time	91.3%	4% of monthly fee	15% of monthly fee	no exclusion	credit then termination right
IRO-L080	resolution time	98.8%	8% of monthly fee	18% of monthly fee	excluding force majeure	credit only

4. Fees, invoicing and escalation

Ironvale may require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Ironvale has 2 sites, and the Contract Manufacturing Agreement treats each as a separate delivery point. Ironvale has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Read with Schedule 3, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Negotiated position: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 2 sites, Ironvale applies the Contract Manufacturing Agreement at the point of delivery, as contract manufacturing practice requires. Administration of this obligation for Ironvale sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

The parties have recorded in Exhibit A that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As between them, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Ironvale is a Michigan contract manufacturing business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. Nothing in the Ironvale negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

Ironvale acknowledges that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In point of remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In contract manufacturing the burden of this sits with operations, and Ironvale discharges it across 2 sites under the Contract Manufacturing Agreement. The Ironvale file records the position as at the last amendment, and Article 4 (Orders and Quantities) is the reference a reviewer should cite when raising it.

5. Service levels and credits

On a proper construction of Schedule 5, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Deliberately so: where the parties

disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. Nothing in the Ironvale negotiation history qualifies Article 9 (Customer Obligations), and a reviewer should not read the pre-signature drafts as doing so.

Subject to Article 20 (Notices), the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the mechanics, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. Nothing in the Ironvale negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

Ironvale acknowledges that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. In terms of consequence, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 2 sites in Michigan means Ironvale applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. Administration of this obligation for Ironvale sits with the account team rather than with central contracts, and Article 9 (Customer Obligations) is where it is evidenced.

Ironvale bears the risk that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Procedurally, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Ironvale runs 2 sites from Michigan in contract manufacturing, so the Contract Manufacturing Agreement is administered locally and this clause is applied per site. The Ironvale file records the position as at the last amendment, and Article 6 (Fees and Payment) is the reference a reviewer should cite when raising it.

6. Acceptance and change control

Ironvale bears the risk that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On this point, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. The Ironvale file records the position as at the last amendment, and Article 11 (Data and Telemetry) is the reference a reviewer should cite when raising it.

Neither Ironvale nor the Provider may treat Article 16 (Term and Termination) as permitting on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Textually, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Ironvale treats the obligation as a site-level matter across its 2 sites in Michigan, consistent with the Contract Manufacturing Agreement. The obligation as it applies to Ironvale was tightened at signature, and Article 3 (Scope of Supply) carries the negotiated wording rather than the standard wording.

The Provider has undertaken to Ironvale that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. 2 sites in Michigan means Ironvale applies the Contract Manufacturing Agreement through its regional operations team rather than through head office. Ironvale has taken the point up once since signature; the correspondence is filed against Article 16 (Term and Termination) and did not result in an amendment.

Ironvale and the Provider agree that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the wording, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In contract manufacturing the burden of this sits with operations, and Ironvale discharges it across 2 sites under the Contract Manufacturing Agreement. Nothing in the Ironvale negotiation history qualifies Article 17 (Transition Assistance), and a reviewer should not read the pre-signature drafts as doing so.

Ironvale manufacturing agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Ironvale price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
IRO-P0001	part 2009-J	controller board	$1,642	23	550	single source	no EOL commitment
IRO-P0002	part 7067-D	harness	$2,286	12	150	qualification in progress	EOL notice 6 months
IRO-P0003	part 4000-F	controller board	$1,857	13	300	single source	last-time-buy notice 12 months
IRO-P0004	part 6177-M	gearbox	$2,044	17	350	dual sourced	last-time-buy notice 12 months
IRO-P0005	part 5917-F	harness	$811	19	550	dual sourced	no EOL commitment
IRO-P0006	part 1879-G	harness	$1,072	12	200	qualification in progress	no EOL commitment
IRO-P0007	part 1444-A	controller board	$1,652	15	200	single source	last-time-buy notice 12 months
IRO-P0008	part 5302-Q	castor assembly	$2,120	24	200	qualification in progress	EOL notice 6 months
IRO-P0009	part 5268-M	castor assembly	$75	20	500	qualification in progress	no EOL commitment
IRO-P0010	part 8627-R	battery module	$2,387	12	600	single source	last-time-buy notice 12 months
IRO-P0011	part 6314-Q	harness	$1,537	20	600	single source	EOL notice 6 months
IRO-P0012	part 6207-N	harness	$1,190	10	100	single source	last-time-buy notice 12 months
IRO-P0013	part 8534-N	harness	$333	17	400	dual sourced	no EOL commitment
IRO-P0014	part 1296-Q	optical sensor	$2,090	11	250	qualification in progress	EOL notice 6 months
IRO-P0015	part 1090-H	castor assembly	$1,840	15	350	single source	no EOL commitment
IRO-P0016	part 8694-T	optical sensor	$653	10	150	dual sourced	EOL notice 6 months
IRO-P0017	part 9843-S	gearbox	$919	14	250	single source	EOL notice 6 months
IRO-P0018	part 3242-J	castor assembly	$179	18	250	dual sourced	EOL notice 6 months
IRO-P0019	part 2264-L	battery module	$696	13	100	dual sourced	EOL notice 6 months
IRO-P0020	part 1215-N	harness	$729	20	150	dual sourced	last-time-buy notice 12 months
IRO-P0021	part 9768-L	controller board	$855	10	500	dual sourced	last-time-buy notice 12 months
IRO-P0022	part 3649-T	controller board	$1,695	11	450	dual sourced	no EOL commitment
IRO-P0023	part 7080-V	encoder	$229	14	200	qualification in progress	EOL notice 6 months
IRO-P0024	part 2170-G	castor assembly	$2,334	7	200	dual sourced	last-time-buy notice 12 months
IRO-P0025	part 6246-Q	battery module	$989	24	250	dual sourced	EOL notice 6 months
IRO-P0026	part 7867-U	harness	$2,435	13	150	dual sourced	no EOL commitment
IRO-P0027	part 8077-J	battery module	$776	10	300	qualification in progress	last-time-buy notice 12 months
IRO-P0028	part 1639-B	harness	$285	21	150	qualification in progress	EOL notice 6 months
IRO-P0029	part 7521-L	optical sensor	$2,126	6	550	qualification in progress	no EOL commitment
IRO-P0030	part 9527-N	battery module	$373	21	550	qualification in	EOL notice 6

Ironvale price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
						progress	months
IRO-P0031	part 3191-C	optical sensor	$825	13	250	single source	no EOL commitment
IRO-P0032	part 3991-B	optical sensor	$280	14	550	qualification in progress	last-time-buy notice 12 months
IRO-P0033	part 4832-D	battery module	$1,447	20	250	qualification in progress	EOL notice 6 months
IRO-P0034	part 1905-C	optical sensor	$2,290	24	300	single source	last-time-buy notice 12 months
IRO-P0035	part 6030-S	encoder	$569	8	450	dual sourced	last-time-buy notice 12 months
IRO-P0036	part 3628-A	battery module	$1,427	19	150	dual sourced	no EOL commitment
IRO-P0037	part 3429-J	castor assembly	$1,024	12	600	dual sourced	last-time-buy notice 12 months
IRO-P0038	part 9526-V	controller board	$1,452	12	450	single source	no EOL commitment
IRO-P0039	part 4916-S	encoder	$1,256	7	550	qualification in progress	no EOL commitment
IRO-P0040	part 2822-F	encoder	$862	22	350	dual sourced	no EOL commitment
IRO-P0041	part 6356-F	optical sensor	$1,123	21	150	qualification in progress	no EOL commitment
IRO-P0042	part 1658-P	drive unit	$2,052	11	150	dual sourced	last-time-buy notice 12 months
IRO-P0043	part 3002-Z	controller board	$968	15	500	qualification in progress	no EOL commitment
IRO-P0044	part 9171-P	castor assembly	$1,729	9	100	single source	no EOL commitment
IRO-P0045	part 5297-K	gearbox	$96	13	350	single source	EOL notice 6 months
IRO-P0046	part 7154-S	castor assembly	$352	12	550	single source	last-time-buy notice 12 months

6. Acceptance and change control - part 2 of 2

Below, the 6. Acceptance and change control continues; nothing separates this part from the last except the page on which it happens to fall.

No basis of compilation changes at this break; whatever the 6. Acceptance and change control recorded about scope and method at its head continues to apply. The parts are to be read together.

Ironvale manufacturing agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Ironvale price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
IRO-P0047	part 7768-O	battery module	$2,268	19	500	dual sourced	EOL notice 6 months
IRO-P0048	part 2398-D	encoder	$2,223	17	100	qualification in progress	EOL notice 6 months
IRO-P0049	part 6683-J	encoder	$959	6	200	dual sourced	no EOL commitment
IRO-P0050	part 3618-I	encoder	$1,109	8	550	dual sourced	EOL notice 6 months
IRO-P0051	part 4201-N	drive unit	$257	18	500	single source	last-time-buy notice 12 months
IRO-P0052	part 5911-S	encoder	$159	9	150	single source	EOL notice 6 months
IRO-P0053	part 4424-Y	harness	$2,301	6	400	single source	last-time-buy notice 12 months
IRO-P0054	part 8283-L	drive unit	$2,272	14	200	qualification in	EOL notice 6

Ironvale price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
						progress	months
IRO-P0055	part 3344-N	controller board	$1,151	24	600	dual sourced	EOL notice 6 months
IRO-P0056	part 5027-V	gearbox	$2,380	14	500	dual sourced	no EOL commitment
IRO-P0057	part 2033-U	encoder	$921	24	450	dual sourced	last-time-buy notice 12 months
IRO-P0058	part 4058-F	gearbox	$960	14	350	single source	last-time-buy notice 12 months
IRO-P0059	part 1986-W	encoder	$458	9	200	qualification in progress	last-time-buy notice 12 months
IRO-P0060	part 8939-N	optical sensor	$1,087	10	300	single source	no EOL commitment
IRO-P0061	part 1016-O	castor assembly	$1,928	8	350	dual sourced	EOL notice 6 months
IRO-P0062	part 2879-G	battery module	$2,243	14	200	dual sourced	EOL notice 6 months
IRO-P0063	part 7024-P	gearbox	$1,727	17	50	qualification in progress	EOL notice 6 months
IRO-P0064	part 7969-J	harness	$693	10	150	single source	no EOL commitment
IRO-P0065	part 6117-U	harness	$2,361	15	200	qualification in progress	EOL notice 6 months
IRO-P0066	part 7201-R	encoder	$2,382	16	100	qualification in progress	no EOL commitment
IRO-P0067	part 1310-C	battery module	$911	5	200	single source	EOL notice 6 months
IRO-P0068	part 6626-I	encoder	$309	13	150	dual sourced	EOL notice 6 months
IRO-P0069	part 2723-B	drive unit	$926	11	400	single source	last-time-buy notice 12 months
IRO-P0070	part 8732-R	encoder	$284	21	350	single source	no EOL commitment
IRO-P0071	part 1469-B	harness	$142	22	150	single source	last-time-buy notice 12 months
IRO-P0072	part 5028-E	gearbox	$682	10	500	single source	EOL notice 6 months
IRO-P0073	part 7184-X	castor assembly	$1,303	25	400	dual sourced	no EOL commitment
IRO-P0074	part 2014-B	gearbox	$47	6	600	dual sourced	no EOL commitment
IRO-P0075	part 7343-I	battery module	$1,261	14	500	qualification in progress	no EOL commitment
IRO-P0076	part 6340-I	drive unit	$1,897	11	50	single source	no EOL commitment
IRO-P0077	part 1055-J	drive unit	$1,275	15	600	single source	last-time-buy notice 12 months
IRO-P0078	part 3066-Y	harness	$1,240	12	450	dual sourced	no EOL commitment
IRO-P0079	part 4387-J	drive unit	$2,024	11	600	dual sourced	EOL notice 6 months
IRO-P0080	part 3758-K	controller board	$1,709	14	200	single source	last-time-buy notice 12 months
IRO-P0081	part 6144-D	battery module	$2,030	20	250	single source	no EOL commitment
IRO-P0082	part 1177-N	controller board	$1,109	5	350	qualification in progress	last-time-buy notice 12 months
IRO-P0083	part 3168-T	encoder	$2,219	5	50	qualification in progress	EOL notice 6 months
IRO-P0084	part 6728-C	drive unit	$1,950	10	450	single source	no EOL commitment

Ironvale price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
IRO-P0085	part 7468-Q	battery module	$1,628	17	150	qualification in progress	EOL notice 6 months
IRO-P0086	part 5750-M	encoder	$474	10	100	dual sourced	last-time-buy notice 12 months
IRO-P0087	part 8821-H	optical sensor	$820	6	100	single source	no EOL commitment
IRO-P0088	part 5175-Q	battery module	$1,045	6	400	qualification in progress	no EOL commitment
IRO-P0089	part 9721-Z	encoder	$485	8	200	single source	EOL notice 6 months
IRO-P0090	part 1377-A	gearbox	$1,385	4	50	dual sourced	no EOL commitment
IRO-P0091	part 6632-K	gearbox	$2,051	9	350	single source	no EOL commitment
IRO-P0092	part 7378-M	controller board	$963	5	50	dual sourced	last-time-buy notice 12 months

7. Data, intellectual property and licences

Ironvale and the Provider agree that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As a remedy, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Ironvale runs 2 sites from Michigan in contract manufacturing, so the Contract Manufacturing Agreement is administered locally and this clause is applied per site. The Ironvale file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Ironvale is not obliged, under Exhibit D, to accept that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Practically, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Michigan is where Ironvale runs contract manufacturing operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. Notices under Article 20 (Notices) go to the contracting entity named in the recital and not to any Ironvale affiliate that may operate a site.

Article 15 (Limitation of Liability) provides that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In point of remedy, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. The Ironvale relationship is managed against Article 11 (Data and Telemetry) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Exhibit D entitles Ironvale to assume that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the face of the clause, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Ironvale treats the obligation as a site-level matter across its 2 sites in Michigan, consistent with the Contract Manufacturing Agreement. Notices under Article 7 (Service Levels) go to the contracting entity named in the recital and not to any Ironvale affiliate that may operate a site.

8. Indemnities and limitation of liability

Ironvale and the Provider agree that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Strictly, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. Ironvale has taken the point up once since signature; the correspondence is filed against Article 2 (Definitions) and did not result in an amendment.

The Provider has undertaken to Ironvale that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In terms of consequence, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 2 sites, Ironvale applies the Contract Manufacturing Agreement at the point of delivery, as contract manufacturing practice requires. Administration of this obligation for Ironvale sits with the account team rather than with central contracts, and Article 7 (Service Levels) is where it is evidenced.

Neither Ironvale nor the Provider may treat Article 15 (Limitation of Liability) as permitting on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Procedurally, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. The obligation as it applies to Ironvale was tightened at signature, and Article 7 (Service Levels) carries the negotiated wording rather than the standard wording.

Ironvale Contract Manufacturing Inc. undertakes that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Negotiated position: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Ironvale treats the obligation as a site-level matter across its 2 sites in Michigan, consistent with the Contract Manufacturing Agreement. Nothing in the Ironvale negotiation history qualifies Article 20 (Notices), and a reviewer should not read the pre-signature drafts as doing so.

Ironvale manufacturing agreement - Schedule 5 - Notices, Periods and Addressees

Ironvale notice type	Subject	Period	Addressee	Method	Deemed given
IRO-N001	force majeure	35 days	Chief Operating Officer	courier and email	on despatch
IRO-N002	service credit claim	65 days	General Counsel	portal notice	on receipt
IRO-N003	non-renewal	90 days	Contracts Manager	email with acknowledgement	on receipt
IRO-N004	change of control	25 days	Contracts Manager	email with acknowledgement	on despatch
IRO-N005	renewal election	70 days	designated account executive	courier only	on the second business day after despatch
IRO-N006	assignment request	50 days	designated account executive	courier only	on the second business day after despatch
IRO-N007	non-renewal	50 days	Contracts Manager	portal notice	on despatch
IRO-N008	breach	45 days	General Counsel	email with acknowledgement	on despatch
IRO-N009	price adjustment	5 days	designated account executive	courier and email	on despatch
IRO-N010	service credit claim	45 days	designated account executive	courier only	on the second business day after despatch
IRO-N011	non-renewal	85 days	General Counsel	courier only	on receipt
IRO-N012	termination for cause	40 days	Chief Operating Officer	email with acknowledgement	on receipt
IRO-N013	price adjustment	90 days	Chief Operating Officer	courier only	on receipt
IRO-N014	price adjustment	5 days	designated account executive	courier only	on receipt
IRO-N015	renewal election	10 days	designated account executive	portal notice	on the second business day after despatch
IRO-N016	termination for cause	10 days	Contracts Manager	email with acknowledgement	on receipt
IRO-N017	breach	25 days	Chief Operating Officer	portal notice	on receipt
IRO-N018	change of control	90 days	General Counsel	email with acknowledgement	on the second business day after despatch
IRO-N019	force majeure	45 days	designated account executive	email with acknowledgement	on receipt

Ironvale notice type	Subject	Period	Addressee	Method	Deemed given
IRO-N020	assignment request	70 days	General Counsel	courier and email	on the second business day after despatch
IRO-N021	breach	30 days	General Counsel	email with acknowledgement	on the second business day after despatch
IRO-N022	assignment request	90 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
IRO-N023	change of control	80 days	Contracts Manager	courier and email	on receipt
IRO-N024	breach	55 days	Chief Operating Officer	portal notice	on receipt
IRO-N025	assignment request	10 days	Chief Operating Officer	portal notice	on despatch
IRO-N026	renewal election	50 days	designated account executive	courier only	on the second business day after despatch
IRO-N027	renewal election	5 days	General Counsel	portal notice	on despatch
IRO-N028	assignment request	5 days	General Counsel	courier and email	on despatch
IRO-N029	renewal election	75 days	General Counsel	portal notice	on despatch
IRO-N030	service credit claim	40 days	Chief Operating Officer	email with acknowledgement	on receipt
IRO-N031	force majeure	30 days	Contracts Manager	portal notice	on despatch
IRO-N032	renewal election	30 days	Chief Operating Officer	email with acknowledgement	on receipt
IRO-N033	assignment request	75 days	Contracts Manager	courier and email	on the second business day after despatch
IRO-N034	breach	40 days	Chief Operating Officer	courier only	on despatch
IRO-N035	termination for cause	35 days	Contracts Manager	courier only	on receipt
IRO-N036	assignment request	85 days	General Counsel	portal notice	on the second business day after despatch
IRO-N037	force majeure	25 days	General Counsel	email with acknowledgement	on receipt
IRO-N038	change of control	80 days	designated account executive	email with acknowledgement	on despatch
IRO-N039	service credit claim	90 days	Contracts Manager	email with acknowledgement	on despatch
IRO-N040	termination for cause	70 days	designated account executive	courier only	on the second business day after despatch
IRO-N041	assignment request	75 days	Chief Operating Officer	portal notice	on receipt
IRO-N042	termination for cause	60 days	Contracts Manager	portal notice	on receipt
IRO-N043	change of control	15 days	designated account executive	portal notice	on receipt
IRO-N044	force majeure	35 days	Chief Operating Officer	portal notice	on despatch
IRO-N045	change of control	50 days	General Counsel	courier and email	on receipt
IRO-N046	change of control	30 days	Chief Operating Officer	portal notice	on the second business day after despatch
IRO-N047	force majeure	50 days	Contracts Manager	courier only	on despatch
IRO-N048	non-renewal	10 days	Chief Operating Officer	portal notice	on the second business day after despatch
IRO-N049	non-renewal	30 days	designated account executive	email with acknowledgement	on despatch
IRO-N050	service credit claim	15 days	designated account executive	email with acknowledgement	on receipt
IRO-N051	renewal election	5 days	designated account executive	courier only	on the second business day after despatch
IRO-N052	service credit claim	85 days	Chief Operating Officer	portal notice	on receipt
IRO-N053	service credit claim	85 days	designated account executive	email with acknowledgement	on despatch
IRO-N054	price adjustment	30 days	designated account	courier and email	on despatch

Ironvale notice type	Subject	Period	Addressee	Method	Deemed given
			executive		
IRO-N055	termination for cause	50 days	designated account executive	courier only	on despatch
IRO-N056	change of control	25 days	General Counsel	portal notice	on the second business day after despatch
IRO-N057	non-renewal	85 days	Contracts Manager	portal notice	on receipt
IRO-N058	termination for cause	45 days	Contracts Manager	email with acknowledgement	on despatch
IRO-N059	termination for cause	70 days	General Counsel	courier and email	on receipt
IRO-N060	renewal election	80 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
IRO-N061	price adjustment	65 days	Chief Operating Officer	courier and email	on the second business day after despatch
IRO-N062	renewal election	55 days	General Counsel	portal notice	on despatch
IRO-N063	price adjustment	50 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
IRO-N064	assignment request	40 days	General Counsel	courier only	on despatch
IRO-N065	service credit claim	20 days	designated account executive	courier only	on despatch
IRO-N066	service credit claim	10 days	Chief Operating Officer	courier and email	on despatch
IRO-N067	service credit claim	90 days	General Counsel	courier and email	on the second business day after despatch
IRO-N068	service credit claim	60 days	designated account executive	email with acknowledgement	on the second business day after despatch
IRO-N069	termination for cause	5 days	General Counsel	portal notice	on despatch
IRO-N070	renewal election	55 days	Chief Operating Officer	portal notice	on despatch
IRO-N071	change of control	5 days	Contracts Manager	courier only	on despatch
IRO-N072	service credit claim	25 days	Contracts Manager	courier only	on the second business day after despatch
IRO-N073	force majeure	65 days	General Counsel	courier and email	on receipt
IRO-N074	change of control	35 days	Contracts Manager	courier only	on despatch
IRO-N075	termination for cause	20 days	General Counsel	portal notice	on the second business day after despatch
IRO-N076	assignment request	40 days	designated account executive	courier only	on despatch
IRO-N077	renewal election	40 days	Contracts Manager	courier and email	on receipt
IRO-N078	change of control	5 days	General Counsel	courier only	on the second business day after despatch

9. Term, termination and transition

Where Article 12 (Intellectual Property) applies, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Tighter here than standard: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Contract Manufacturing Agreement reaches each of Ironvale's 2 sites separately, which is how a contract manufacturing operator in Michigan administers it. Where Ironvale has raised a query the Provider has answered by reference to Article 15 (Limitation of Liability), and the exchange is on the contract file.

The parties have recorded in Exhibit C that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Because Ironvale is a Michigan contract manufacturing business with 2 sites, the Contract Manufacturing Agreement devolves this to the site manager. The obligation as it applies to Ironvale was tightened at signature, and Article 6 (Fees and Payment) carries the negotiated wording rather than the standard wording.

Read with Exhibit D, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As a remedy, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Ironvale's 2 sites, since a contract manufacturing operator administers the Contract Manufacturing Agreement where the units work. Where Ironvale has raised a query the Provider has answered by reference to Article 7 (Service Levels), and the exchange is on the contract file.

Ironvale and the Provider agree that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As agreed, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Michigan is where Ironvale runs contract manufacturing operations across 2 sites, and the Contract Manufacturing Agreement follows that footprint. For a manufacturer of Ironvale's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

10. Assignment, notices and general

Article 4.5 of this instrument records a departure from the Provider's standard position: the Provider commits to a minimum annual quantity and pays the shortfall charge on any deficit, whether or not it takes delivery. The provision was negotiated at signature and is not qualified elsewhere in the Contract Manufacturing Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 4.5 as governing.

Where Article 21 (Governing Law and Disputes) applies, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Practically, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 2 sites in contract manufacturing, Ironvale takes this obligation at site level rather than centrally under the Contract Manufacturing Agreement. Because Ironvale operates in contract manufacturing, the practical burden of this clause falls on its Michigan operation, and Article 17 (Transition Assistance) governs how it is measured.

As between Ironvale and the Provider, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. By design, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. For Ironvale, a contract manufacturing operator running 2 sites out of Michigan, the point matters because the Contract Manufacturing Agreement is administered site by site. Because Ironvale operates in contract manufacturing, the practical burden of this clause falls on its Michigan operation, and Article 11 (Data and Telemetry) governs how it is measured.

The Provider warrants to Ironvale that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Ironvale runs 2 sites from Michigan in contract manufacturing, so the Contract Manufacturing Agreement is administered locally and this clause is applied per site. Nothing in the Ironvale negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Except as Article 20 (Notices) permits, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the operative wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 2 sites, Ironvale applies the Contract Manufacturing Agreement at the point of delivery, as contract manufacturing practice requires. Nothing in the Ironvale negotiation history qualifies Article 2 (Definitions), and a reviewer should not read the pre-signature drafts as doing so.